SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 2351 of 2023 (YEAR: 2023)

CORAM: B.R. GAVAI, A.S. BOPANNA, DIPANKAR DATTA

Teesta Atul Setalvad
... Appellant(s) / Petitioner(s)
Versus
State of Gujarat
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 437 CrPC, Section 439 CrPC

JUDICIAL HEADNOTE & SUMMARY

Three-judge bench granted regular bail, applying the beneficial proviso under Section 437(1) CrPC in favor of a woman accused, highlighting that continued detention was unwarranted.

RATIO DECIDENDI

The Court held that: Three-judge bench granted regular bail, applying the beneficial proviso under Section 437(1) CrPC in favor of a woman accused, highlighting that continued detention was unwarranted. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Teesta Atul Setalvad v. State of Gujarat (Criminal Appeal No. 2351 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 437 CrPC, Section 439 CrPC. Three-judge bench granted regular bail, applying the beneficial proviso under Section 437(1) CrPC in favor of a woman accused, highlighting that continued detention was unwarranted.

OPERATIVE ORDER

ORDER: Decided